

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

----- X
VELMA Y. VEGA

Plaintiffs,

-against-

THE CITY OF NEW YORK , THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
PEROT TAX REGISTRY #:946112, and
UNIDENTIFIED OFFICERS "JOHN DOES" and
"JANE DOES" 1-5 NAMES FICTITIOUS,
TRUE NAMES UNKNOWN INTENDED TO
DESIGNATE POLICE OFFICERS OF THE 9TH
PCT., AT THE TIMES AND PLACES ALLEGED

Defendants.

----- X
TO THE ABOVE NAMED DEFENDANTS:

Plaintiffs designate
NEW YORK COUNTY
as Place of Trial

The basis of venue is
accident location

SUMMONS

Plaintiff reside at
499 Lincoln Place
Kings, New York

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
July 23, 2013

MICHAEL B. PALILLO, P.C.
Attorneys for Plaintiffs
277 Broadway, Suite 501
New York, NY 10007-2001
(212) 608-8959

Defendants Addresses:

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPT.
"JOHN DOE" or "JANE DOE" 100 Church Street New York, N.Y.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:

-----X
VELMA Y. VEGA

Plaintiff(s)

-against-

COMPLAINT

THE CITY OF NEW YORK , THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
PEROT TAX REGISTRY #:946112, and
UNIDENTIFIED OFFICERS "JOHN DOES" and
"JANE DOES" 1-5 NAMES FICTITIOUS,
TRUE NAMES UNKNOWN INTENDED TO
DESIGNATE POLICE OFFICERS OF THE 9TH
PCT., AT THE TIMES AND PLACES ALLEGED
Defendants.

-----X
S I R S:

Plaintiff, VELMA Y. VEGA, by her attorney, MICHAEL B.
PALILLO, P.C., complaining of the Defendants, alleges upon
information and belief as follows:

1. That this is an action for money damages to redress
deprivation by Defendants of the rights secured to the
Plaintiff, VELMA Y. VEGA, under the Constitution and Laws of
the United States of America and the State of New York.
2. That the Plaintiff, at all dates and times hereinafter
mentioned, was and still is a resident of the County of Kings
State of New York.
3. That at all times hereinafter mentioned, the Defendant,

THE CITY OF NEW YORK, hereinafter "CITY", was and still is a Municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

4. That at all times hereinafter mentioned, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, hereinafter "NYCPD", was and still is a Department and/or Agency of the CITY OF NEW YORK and operates under its supervision, management and control.

5. That at all dates and times hereinafter mentioned, PO, PEROT was assigned to the 9th pct. and acted within the scope of his employment.

6. That at all dates and times hereinafter mentioned, Police officers, "JOHN DOES" and "JANE DOES" numbered 1-5 names Fictitious true names unknown but intended to be designated Police officers at the time and place of this occurrence who Were employees of the "NYCPD", and in particular the 9th pct. and acted within the scope of their employment as such.

7. That a Notice of Claim was duly presented to the City of New York and New York City Police Department at the Office of the Comptroller of the City of New York on the 10th day of April 2013 which was within ninety (90) days of the cause of action accrued herein.

8. That the CITY has demanded a hearing, pursuant to §50-H of the General Municipal Law, and a hearing was held on July 22, 2013.
9. Said claim has been presented for adjustment/payment and no adjustment or payment has been had.
10. This action has been brought within one year and ninety (90) days of the happening of the event complained of.
11. That at all times herein mentioned, the Defendants were acting under color of law, that is, under color of the Constitution, statutes, laws, rules, regulations, customs and usages of the City and State of New York.
12. That at all times herein mentioned, the Defendants, and each of them, separately and in concert with each other engaged in acts and omissions which constituted deprivation of the rights, privileges and immunities of the Plaintiffs and while these acts were carried out under color of law, they had no justification or excuse in law, and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property or insuring Civil order.

AS AND FOR A FIRST CAUSE OF ACTION

13. The Defendants unreasonably seized the person of Plaintiff VELMA Y. VEGA, subjected her to degrading and humiliating searches of her body without a warrant, detained and arrested her, all without her consent or probable cause.

14. That upon information and belief, on or about the 3rd day of November, 1012 at approximately 1:00 p.m. the Plaintiff, was lawfully present at the corner of 2nd Avenue and East 1st Street, City and State of New York.

15. On or about November 3, 2013 at approximately 1:00 p.m. PO PEROT of the 9th pct. and police officers "JOHN DOES"--"JANE DOES" names fictitious true names unknown intended to be police officers designated at the above premises and without conducting an investigation into the validity of any complaint or alleged investigation, falsely detained, falsely arrested and unlawfully imprisoned Plaintiff, VELMA Y. VEGA, and then released her from their custody and control.

16. That on the aforementioned date, Plaintiff, VELMA Y. VEGA was unlawfully detained, unlawfully arrested and unlawfully imprisoned by the agents, servants and/or employees of the CITY OF NEW YORK, the NEW YORK CITY POLICE DEPARTMENT and in

particular PO PEROT and other officers of the 9th Pct.

identified as "JOHN DOES"- "JANE DOES" names fictitious, true names unknown but intended to be police officers at the aforementioned premises making this arrest.

17. That due to the actions of the New York City Police Department, its agents, servants and/or employees including but not limited to PO PEROT, Police Officers of the 9TH Pct., VELMA Y. VEGA suffered serious emotional injuries, stress upon her physical system psychological/emotional injury and anxiety, and damages the full extent of which is not known at this time, for which she was required to and will be required to seek health care in the future.

18. That at the aforementioned date, time and place, the agents, servants and/or employees of the CITY and NYCPD, as previously set forth, without just cause or provocation, falsely arrested and unlawfully imprisoned her, when she was standing outside of her vehicle at a gas station, directed her to get back into her vehicle, then took her out of her vehicle, arrested her on the premises of a gas station, intentionally and maliciously assaulted, threatened, grabbed, shoved, handcuffed her, pushed, slammed her to the concrete floor, pl

pushed her into a police vehicle in front of her infant daughter and niece, held her within a police vehicle for approximately 30 minutes, took her to the 9th Pct., where she detained against her will, placed in a holding cell at the 9th pct., given a summons for disorderly conduct bearing summons number 4321981009-8 and released, all without the permission and consent of Plaintiff, VELMA Y. VEGA. Sexually suggestive and explicit comments were made about the Plaintiff's clothing, the way she looked with a tank top on, her physical appearance and that "She was a beautiful women."

19. That PO PEROT did enter the holding cell where the Plaintiff was, asked her to remove her sweater. PO PEROT proceeded to speak to the Plaintiff but stared at Plaintiff's breasts instead of making eye contact with the Plaintiff when speaking, causing the Plaintiff embarrassment and humiliation.

20. That the Plaintiff was required to appear in the Criminal Court New York County SAP Part 346 Broadway New York, New York on January 18, 2013 to answer the charge of Disorderly Conduct. PL 240.20.

22. That the Plaintiff was required to appear again in the aforesaid Criminal Court on February 19, 2013.

23. That on March 7, 2013 the Plaintiff was again caused to appear in the aforementioned Criminal Court and on that date the charges against the Plaintiff were dismissed outright by the Court.

24. The aforesaid searches, detention and arrest of Plaintiff, VELMA Y. VEGA constituted unreasonable and excessive force by the CITY and NYCPD as identified above.

25. Plaintiff was deprived of her freedom for a substantial period of time, suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer from mental and emotional distress as a result of the aforesaid unlawful conduct of the Defendants and has been caused to fear repetition of the unlawful conduct by the Defendants or by other police officers.

26. In the manner aforesaid, each of the Defendants, jointly and severally, acted maliciously, willfully and wantonly, and outside the scope of their jurisdiction, although allegedly under color of law, violated the following rights of the Plaintiff, VELMA Y. VEGA:

A) To be free from unreasonable search and seizure;

B) To be free from search and seizure without probable cause;

C) To be free from unlawful detainment and arrest;

D) To be free from assault;

E) To be free from negligence in the performance of police duties;

F) To be free from summary punishment without trial;

G) Due process of law.

27. All of these rights are secured to the Plaintiff by the provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and by 42 U.S.C. Sections 1983 and 1988, and by the Statutes and Laws of the State of New York which are invoked under the jurisdiction of this Court.

28. That solely by reason of all the foregoing, Plaintiff, VELMA Y. VEGA, has suffered damage and injury in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

29. Plaintiff, repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint designated "1" through "27" inclusive with the same

force and effect as though each were fully set forth at length herein.

30. Upon information and belief that at the aforesaid time and place, Plaintiff was assaulted and had hands placed on her by the Defendants herein, without the consent of the Plaintiff.

31. That Plaintiff in no way instigated, caused or contributed to the complained of conduct.

32. That as a result of the assault the Plaintiff suffered, her health was impaired, she was caused to endure scorn and ridicule by being taken in handcuffs in front of her infant daughter and niece, she was caused to be assaulted and hands placed on her by the Defendants. Plaintiff, VELMA Y. VEGA, suffered great physical and mental distress and humiliation, her reputation and character were injured and she was embarrassed.

33. That solely by reason of all the foregoing Plaintiff has suffered damage and injury in a sum which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

34. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint

designated "1" through "27", "30" through "32" inclusive, with the same force and effect as though each were fully set forth at length herein.

35. That the Defendants intentionally and for the purpose of causing severe physical and mental distress conducted themselves toward VELMA Y. VEGA in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

36. That the Defendants recklessly conducted themselves toward the Plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

37. That solely by reason of the foregoing the Plaintiff, VELMA Y. VEGA has suffered damage and injury in a sum which exceeds the jurisdictional limitations of all lower Court.

AS AND FOR A FOURTH CAUSE OF ACTION

38. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs of the Complaint designated "1" through "27", "30" through "32", "35" and "36" inclusive, with the same force and effect as though each were fully set forth at length herein.

39. That at all dates and times hereinafter mentioned the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT

were charged with the duty to perform their job functions in a reasonably safe manner.

40. That at all dates and times hereinafter mentioned the Defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, instructed and educated their Police Officers in how to perform their job functions.

41. That at all dates and times hereinafter mentioned PO PEROT, as well as officers of the 9th pcts. as aforesaid, did not perform their job duties in a reasonable same manner.

42. That at all dates and times hereinafter mentioned the Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents servants and/or employees, including but not limited to PO PEROT, POLICE OFFICERS OF THE 9th pct. as set forth above, were negligent, careless and reckless in the performance of their job duties.

43. That solely by reason of the foregoing the Plaintiff, VELMA Y. VEGA, has suffered damage and injury in a sum which exceeds the jurisdictional limitations of all lower Courts.

WHEREFORE, Plaintiff, VELMA Y. VEGA demands judgment against the Defendants: on the First Cause of Action in a sum

which exceeds the jurisdictional limitations of all lower Courts; on the Second Cause of Action in a sum which exceeds the jurisdictional limitations of all lower Courts; on the Third Cause of Action in a sum which exceeds the jurisdictional limitations of all lower Courts; on the Fourth Cause of Action in a sum which exceeds the jurisdictional limitations of all lower Courts; together with the costs and disbursements of this action, and for such other and further relief as to this Court deems just proper and equitable.

Dated: New York, New York
July 23, 2013

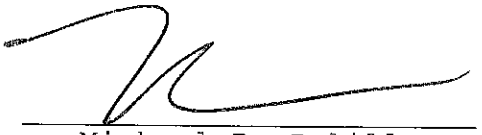


MICHAEL B. PALILLO
MICHAEL B. PALILLO, P.C.
Attorney for Plaintiffs
277 Broadway, Suite 501
New York, NY 10007
(212) 608-8959

Michael B. Palillo, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following under penalties of perjury:

1. I am the attorney for the Plaintiff(s) in the above captioned matter. I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true based on a review of the files maintained in this office and conversations had with the Plaintiff(s). The reason why this verification is made by the undersigned attorney rather than the Plaintiff(s) is that the Plaintiff(s) do/does not reside in the County where in I maintain my office for the practice of law.

Dated: New York, New York
July 24, 2013



Michael B. Palillo

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

VELMA Y. VEGA

Plaintiff(s)

-against-

THE CITY OF NEW YORK , THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
PEROT TAX REGISTRY #:946112, and
UNIDENTIFIED OFFICERS "JOHN DOES" and
"JANE DOES" 1-5 NAMES FICTITIOUS,
TRUE NAMES UNKNOWN INTENDED TO
DESIGNATE POLICE OFFICERS OF THE 9TH
PCT., AT THE TIMES AND PLACES ALLEGED

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Michael B. Palillo P.C.
Attorneys for Plaintiff
Office and Post Office Address
277 Broadway Suite 501
New York New York 10007
(212) 608-8959
(212) 608-0304 Fax (Not for Service)
Palillolaw@AOL.COM
(Not for Service)

Signature (Rule 130-1.1-a)



Print name beneath

Michael B. Palillo